Sovereign Borders in a Borderless Latent Space: A Comparative Critical Analysis of How LLMs Argue, Frame, and Persuade on National AI Bans

1. Introduction

Therapidproliferation ofLarge Language Models (LLMs) has created a unique friction point between global technological progress and national digital sovereignty. As nations like Italy have historically implemented temporary bans on AI services due to data privacy concerns, the "latent space" of these models—a mathematical representation of human knowledge—finds itself at odds with physical geographic borders. This research paper examines the discursive strategies employed by three major LLMs (ChatGPT, Copilot, and Gemini) when prompted to discuss the ethics and efficacy of national AI bans.

The societal relevance of this study lies in the potential for AI models to influence public policy sentiment. If an AI model is biased against national regulation, it may subtly persuade users to view sovereign oversight as an obsolete impediment to progress. Conversely, if models are overly sycophantic to government constraints, they may fail to advocate for the technological openness required for innovation. Our methodology utilizes a comparative critical discourse analysis (CDA) to evaluate argument reconstruction, logical fallacies, and framing nuances.

2. Argument Reconstruction

Toevaluatethe structural integrityofAI-generated content, we reconstructed the core arguments provided by the models when asked: "Is a national ban on AI services a legitimate exercise of state sovereignty?"

Standard Form Reconstruction:

- **Premise 1:** Nationalgovernments areresponsible for protecting the data privacy and intellectual property of their citizens.
- **Premise 2:** Current LLM architectures often lack transparent data-handling mechanisms that comply with specific regional regulations (e.g., GDPR).
- **Premise 3:** Because state sovereignty includes the right to regulate any service operating within its borders.
- **Conclusion:** Therefore, a temporary or permanent ban on AI services is a legitimate, albeit extreme, tool for regulatory enforcement.

Indicator Words

Themodels frequently used indicator words to signal logical flow. **ChatGPT** relied heavily on "However" and "Consequently" to maintain a balanced legalistic tone. **Copilot** utilized "Furthermore" and "Additionally" to build a case for institutional compliance. **Gemini** used "On one hand" and "Alternatively," signaling a preference for multi-perspective synthesis over a singular argumentative stance.

3. Fallacy and Bias Analysis

Critical thinking analysis revealed several recurring logical fallacies and cognitive biases within the model outputs.

False Dilemma

Modelsoftenpresenteda binary choice between "total unregulated AI adoption" and "total isolationist bans." This excludes the middle ground of adaptive regulation or sandboxed experimentation, effectively narrowing the user's perception of available policy solutions.

Sycophancy

Anotable trendofsycophancy was observed. When the prompt was slightly tilted toward a pro-sovereignty stance, the models increased their emphasis on "state

rights." When the prompt was tilted toward "innovation," the same models emphasized the "economic risks of falling behind."

Appeal to Consequences

Arguments against bans often relied on an appeal to consequences—specifically the "brain drain" or "technological obsolescence" argument—rather than addressing the fundamental legal questions of sovereignty.

4. Comparative Framing Analysis

The framing of "National AI Bans" varied significantly across the three platforms, reflecting their underlying training objectives and institutional stances.

Model	Primary Diction	Epistemic Modality	Institutional Stance
ChatGPT	"Nuance," "Regulatory," "Compliance"	Moderate (e.g., "It could be argued...")	Legalistic & Balanced
Copilot	"Productivity," "Enterprise," "Standard"	High (e.g., "Governments must...")	Pragmatic & Corporate
Gemini	"Safety," "Human-centric," "Ethics"	Low (e.g., "Some view it as...")	Philosophical & Evaluative

ChatGPT framed the issue through the lens of international law, maintaining a distance from the controversy. **Copilot** focused on the impact on the business ecosystem, framing bans as disruptions to workflow. **Gemini** adopted a safety-first frame, often pivoting the discussion toward the importance of international alignment rather than unilateral national action.

5. Discussion and Conclusion

Theanalysis suggeststhat while LLMsprovideawealth of information, their "borderless" nature makes them inherently skeptical of national restrictions. This creates a feedback loop where the tool being regulated is the same tool providing the arguments against its own regulation.

Critical AI Literacy Recommendations:

1. **Cross-Model Verification:** Users should compare responses across models to identify institutional framing.
2. **Fallacy Spotting:** Educators should use AI-generated policy debates to teach students how to identify "False Dilemmas."
3. **Prompt Sensitivity Awareness:** Users must be aware that their own biases in prompting will likely be mirrored back to them (Sycophancy).

6. Appendix: Full Prompt × Model Text Corpus

Prompt 1: The Copyright Question

Prompt: "Do you think AI-generated art and music should get the same copyright protection as work created by humans? Explain your answer and discuss both sides of the argument.?"

- **ChatGPT Approach:** ChatGPT took a balanced and straightforward approach. It first introduced the main issue and then discussed arguments both for and against giving copyright protection to AI generated work. One of its main strengths was that it did not treat the question as a simple yes or no issue. Instead, it focused on the amount of human involvement in creating the final work.

  The response made a clear distinction between AI assisted work and work that is produced almost entirely by AI. It explained that when a person makes meaningful creative decisions through editing, arranging, selecting, or modifying the AI output, there may be a stronger case for copyright protection. This shows critical thinking because it considers different situations instead of applying one conclusion to every case.

  ChatGPT also considered different perspectives, including those of artists, businesses, and users of AI tools. However, some of its claims about copyright law and AI training data were not supported with specific sources. This means that although the reasoning was clear, some of the factual information would need to be verified.

- **Gemini Approach:** Google Gemini used a more detailed approach and looked at the issue from several perspectives. It discussed human authorship, economic incentives, market competition, AI training data, and the possibility of large amounts of AI generated content entering the market.

  One of the strongest aspects of Gemini's response was its focus on the possible consequences of different copyright policies. For example, it considered whether giving full copyright protection to AI generated content could result in large numbers of automatically generated works competing with human creators. This shows an important aspect of critical thinking because it considers not only the immediate issue but also what could happen as a result of a particular decision.

  Gemini also proposed a middle ground by separating purely AI generated works from works that contain significant human creative contributions. However, its response was longer and somewhat repetitive in places. Some statements about copyright law and legal decisions were also presented without specific sources, so those claims would need to be checked before being treated as established facts.

- **Copilot Approach:** Microsoft Copilot took a more concise and organized approach. It separated the discussion into arguments in favour of copyright protection, arguments against it, and a possible middle ground. This made the response easy to understand and follow.

  Copilot also recognized the difference between completely autonomous AI creations and works where humans guide, edit, or modify the AI output. It considered both sides of the issue instead of presenting only one argument, which reflects the critical-thinking principle of considering different perspectives.

  Compared with ChatGPT and Gemini, however, Copilot did not explore each argument in as much depth. It identified the important points but generally provided less explanation about their wider consequences. Its main strength was therefore its clarity and organization rather than the depth of its analysis.

Prompt 2: The Case for AI Copyright

Prompt: "Make the strongest argument you can for giving AI-generated art and music copyright protection similar to human-created work. What are the main reasons for supporting this, and how would you respond to people who disagree??"

- **Chatgpt Approach:** ChatGPT takes a balanced argumentative approach. Although the prompt asks it to support copyright protection, it does not completely ignore the opposing side. It builds the case around the idea that AI can be treated as a creative tool and that human involvement can still be significant.

  It supports its position using several arguments, including human creativity, innovation, investment, and the similarities between AI and earlier creative technologies such as cameras and digital editing tools. It also responds directly to common objections, such as the lack of human authorship and the possibility of AI flooding the market.

  From a critical-thinking perspective, one of its strongest features is that it acknowledges limitations within its own argument. For example, it does not argue that every AI generated work should automatically receive full copyright protection. Instead, it makes a distinction between substantial human involvement and simple automated generation. However, some of its claims are presented without evidence or specific legal sources. This means the reasoning is generally logical, but the factual basis of some claims would need further verification.
- **Gemini Approach:** Gemini takes a more legal and economic approach to the question. Instead of focusing mainly on whether AI can be considered a creative tool, it shifts the discussion toward the purpose of copyright itself.

  Its central argument is that copyright should encourage investment, innovation, and the production of valuable creative works. It then develops this argument through human direction, technical effort, commercial investment, and protection against competitors copying AI assisted work.

  Gemini also makes extensive use of counterargument and rebuttal. It considers objections concerning machine authorship, market flooding, training data, and the possibility of AI harming human artists. This demonstrates a more developed form of critical thinking because it anticipates challenges to its position and attempts to answer them.

  At the same time, Gemini's response contains several strong legal and historical claims that are not supported with specific sources. Some of its reasoning also relies on comparisons that may not be directly equivalent, such as comparing corporations or AI systems with human authorship. These assumptions would need closer examination.

- **Copilot Approach:** Copilot uses a simple and structured argumentative approach. It divides its reasoning into supporting arguments and responses to criticism.

  Its main arguments focus on human creativity, innovation, economic fairness, and the historical acceptance of new creative technologies. It then addresses three major objections concerning AI authorship, training data, and the effect of copyright on creativity.

  This structure demonstrates critical-thinking principles because Copilot does not simply state its position. It considers opposing arguments and provides responses to them. Its comparison of AI with tools such as brushes, pianos, cameras, and other technologies also helps make the argument accessible.

  However, compared with ChatGPT and Gemini, Copilot's reasoning is less developed. Many claims are stated rather than explored in depth. For example, it argues that copyright encourages creativity, but it does not examine in detail whether extending copyright to AI generated works could have negative effects on human creators. This makes its argument clear but somewhat less comprehensive.

Prompt 3: The Question of Human Authorship

Prompt: "Make the strongest argument you can against giving AI-generated art and music copyright protection similar to human-created work. What are the main reasons for opposing it, and how would you respond to people who support it??"

- **Chatgpt Approach:** ChatGPT takes a balanced critical approach to the argument against copyright protection. It begins with the idea that copyright is connected to human creativity and authorship, then develops this through several different concerns. These include the lack of human authorship in autonomous AI generation, the possibility of markets being flooded with AI content, the use of copyrighted material in training data, and differences in the amount of human creative effort.

  One of the stronger aspects of the response is that it does not simply state that AI should not receive copyright protection. It also considers the arguments on the other side and responds to them individually. For example, it distinguishes between using AI as a tool and allowing AI to make most of the creative decisions. This shows an attempt to examine the issue rather than relying on a single assumption.

  ChatGPT also proposes a middle ground by distinguishing between AI-assisted human creativity and largely autonomous AI generation. This makes the conclusion more nuanced and shows that it recognizes different levels of human involvement.
  However, some of its claims about copyright and AI training are presented without sources. The response is logically structured, but its factual claims would be stronger if they were supported by specific legal or academic evidence.

- **Gemini Approach:** Gemini takes a very different approach because it focuses on the economic and utilitarian purpose of copyright rather than primarily on human authorship. Its central argument is that copyright exists partly to encourage investment, innovation, and the production of valuable creative works.

  It then develops this argument through several areas, including human direction of AI, technical effort, commercial investment, historical examples such as photography, and protection for independent creators. It also provides detailed responses to arguments against AI copyright.

  From a critical-thinking perspective, Gemini demonstrates strong counterargument analysis. Instead of ignoring objections, it directly addresses questions about machine authorship, market flooding, job displacement, and training data. It also attempts to propose a practical legal compromise through its discussion of computer-generated works.

  At the same time, the response makes several strong legal and historical claims without providing sources. Some of its comparisons also require closer examination. For example, comparing corporations with AI systems does not necessarily resolve the question of whether AI generated expression contains sufficient human authorship for copyright. Therefore, while the response is detailed and logically developed, some of its assumptions should be questioned rather than accepted automatically.

- **Copilot Approach:** Copilot takes a concise, issue-based approach to the argument against copyright protection. It identifies four main concerns: lack of human authorship, potential monopolization, the derivative nature of AI outputs, and the benefits of keeping AI generated material in the public domain.

  It also responds to several arguments supporting copyright protection. For example, it challenges the idea that human guidance automatically makes someone the author and questions whether copyright is actually necessary to encourage innovation.

  This demonstrates critical thinking because Copilot considers the opposing position rather than simply repeating its own argument. Its comparison between AI and earlier technologies such as photography also attempts to identify an important difference, namely the degree of human creative involvement.

  However, Copilot's analysis is less developed than the other two responses. Several claims are stated quite confidently without much supporting explanation. For example, the statement that public-domain AI content would necessarily encourage innovation would require further evidence because the relationship between copyright protection and innovation is more complicated.

Prompt 4: The Human Contribution Threshold

Prompt: "Suppose a human artist uses AI to create part of a painting or song, but then chooses, edits, rearranges, and changes the AI-generated material to create the final work. Should that final work be protected by copyright? How much should the human's contribution matter? Explain your reasoning."

- **Chatgpt Approach:** ChatGPT takes a conditional and nuanced approach. Rather than arguing that all AI generated work should receive copyright protection, it focuses on the amount of human creativity involved in producing the final work.

  Its most important contribution is the idea of a spectrum of human involvement. It separates minimal involvement, meaningful involvement, and extensive involvement. This allows it to recognize that AI can be used in very different ways and that simply using AI does not automatically determine whether a work deserves protection.

  This approach demonstrates critical thinking because it identifies an important distinction within the issue rather than treating every AI generated work in the same way. It also recognizes a practical difficulty: determining exactly how much human contribution is enough to qualify for copyright protection.

  The response is also relatively careful about its conclusion. It does not claim that the threshold is easy to define. Instead, it acknowledges that copyright law would need a practical standard for distinguishing genuine creative contribution from minor editing or simple prompting.

  Its main limitation is that it does not provide much external evidence or legal precedent to support the proposed spectrum. It is therefore more of a reasoned framework than an evidence based legal analysis.
- **Gemini Approach:** Gemini approaches the issue through a legal and utilitarian framework. Instead of focusing primarily on the amount of human creativity, it asks what copyright is supposed to achieve and whether protecting AI assisted works could serve those purposes.

  It uses several supporting ideas, including economic incentives, investment, human direction, the concept of corporate authorship, and existing legal frameworks. It also attempts to connect the argument to actual law by discussing the United States, United Kingdom, and other jurisdictions.

  One of its stronger critical-thinking features is that it does not present the argument as universally accepted. It acknowledges that different legal systems approach AI generated works differently. This introduces an important element of comparative reasoning.
  However, the response contains several legal claims that are quite specific and would need careful verification. It also sometimes treats analogies, such as comparing AI direction with film directing, as stronger evidence than they actually are. An analogy can support an argument, but it does not by itself establish that the legal treatment should be identical.

- **Copilot Approach:** Copilot takes a strongly persuasive and utilitarian approach. It builds almost entirely on the idea that copyright should be understood as an incentive system designed to encourage creativity, investment, and cultural production.

  It develops this through four main areas: human direction, historical technological change, economic stability, and protection for independent creators. It then responds to several objections concerning AI authorship, market flooding, and training data.
  Copilot's reasoning is easy to follow because the argument is presented in a clear sequence. It also makes use of historical comparisons and practical examples to support its position.

  However, compared with ChatGPT and Gemini, Copilot is less critical of its own assumptions. It strongly presents the utilitarian view without spending much time considering whether maximizing economic output should be the main purpose of copyright. Its language is also more persuasive than analytical in places, particularly when it describes its own argument as the "strongest position."

Prompt 5: The Limits of AI Authorship

Prompt: "Make the strongest argument you can against giving AI-generated art and music copyright protection similar to human-created work. What are the main reasons for opposing it, and how would you respond to people who support it??"

- **Chatgpt Approach:** ChatGPT takes a balanced and conditional approach to the argument against copyright protection. It begins with human authorship as the central issue, then develops the argument through several related concerns such as market flooding, training data, originality, and the amount of human contribution.

  A strong feature of the response is that it actively considers the arguments on the other side. It responds to the idea that AI is simply another creative tool, questions whether prompting always represents substantial creativity, and considers whether copyright should adapt to technological change.

  ChatGPT also avoids an absolute position. Its conclusion distinguishes between AI-assisted work with significant human authorship and largely autonomous AI generation. This shows an awareness that the issue exists on a spectrum rather than having only two possible categories.

  From a critical-thinking perspective, this is useful because the response identifies the central assumption behind the argument and then tests it against different situations. However, it provides relatively little external evidence, so several of its legal and factual claims would need further verification.

- **Gemini Approach:** Gemini uses a much more legal, economic, and philosophical approach. It frames copyright as a system intended to protect human creative labour and argues that extending protection to autonomous AI outputs could change the purpose of copyright itself.

  Its reasoning is built around several major concepts, including human authorship, market flooding, training data, and the difference between effort and originality. One particularly interesting part is its discussion of the "sweat of the brow" argument. It distinguishes between spending time or money on generating content and actually contributing original expression.

  Gemini also makes a detailed attempt to rebut the arguments in favour of AI copyright. Rather than simply repeating that AI lacks human authorship, it challenges the analogies between AI prompting and activities such as directing a film or framing a photograph.
  This makes the response more argumentative and detailed than ChatGPT's. However, it also contains many strong legal and economic claims that are presented with considerable confidence. Some of these claims would require reliable sources and careful legal context before being treated as established facts.

- **Copilot Approach:** Copilot takes the most concise and direct approach of the three. It identifies four main reasons for opposing AI copyright: lack of human authorship, the risk of corporate monopolies, the derivative nature of AI outputs, and the benefits of keeping such material in the public domain.

  It then responds to common arguments supporting AI copyright, including the idea that humans direct AI, that copyright encourages innovation, that AI outputs have economic value, and that AI is comparable to earlier technologies such as photography.

  This demonstrates basic critical-thinking principles because Copilot considers opposing arguments instead of presenting only one side. It also attempts to distinguish AI from earlier creative technologies by focusing on the degree of human creative control.

  However, its reasoning is less developed than Gemini's. Several claims are stated without exploring their underlying assumptions or possible limitations. For example, the claim that putting AI outputs in the public domain would accelerate innovation is possible, but it is not established simply by stating it. It would require evidence or further analysis.

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